

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

Samsung Electronics America, Inc.
v.
Orient Overseas Container Lines, Ltd. and OOCL (Europe), Ltd.
v.
Samsung Electronics Co. Ltd.

**COUNTER-COMPLAINANT'S OPPOSITION TO COUNTER-RESPONDENT'S
MOTION TO DISMISS THE AMENDED COUNTERCLAIM**

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Counter-Complainants Orient Overseas Container Line, Ltd. and OOCL (Europe) Ltd. (“Counter-Complainants” or “OOCL”), through their undersigned counsel, hereby respond to the September 8, 2025 Motion (“Motion”) of Samsung Electronics America, Inc. (“Counter-Respondent” or “SEA”) to Dismiss OOCL’s Amended Counterclaim (“AMCC”). For the reasons set forth below, SEA’s Motion should be denied. In the alternative, OOCL should be allowed the opportunity to amend the Amended Counterclaim to address any flaws that the Presiding Officer may identify.

INTRODUCTION

The essence of OOCL’s Counterclaim is that Samsung Electronics Co. Ltd. (“Samsung”) and some of its affiliates – including SEA (collectively the “Samsung entities”) -- used deception and concealment to obtain from OOCL Service Contracts that gave the Samsung entities favorable rates, terms, and conditions which they would not have received without their unfair and unjust devices and means. In particular, Samsung and SEA led OOCL to believe that the Samsung entities expressly accepted responsibility for all detention, demurrage, and similar charges, as specified by the Service Contracts to which Samsung and SEA agreed, unless the delay was OOCL’s fault – *i.e.*, if the delay

was due to the action or inaction of a Samsung entity or their agents (primarily drayage providers). Samsung and SEA confirmed this belief by paying detention and demurrage charges in accordance with the Service Contracts, without demur.

Having received the benefits of the lower rates and better terms/conditions, the Samsung entities reneged on their agreement to pay all detention, demurrage, and similar charges that were not caused by OOCL, beginning a campaign to claw back from OOCL all of the detention and demurrage and similar fees the Samsung entities paid to OOCL even though the Samsung entities had agreed to be responsible for such fees. They even went so far as to demand refund by OOCL of charges that were assessed to the Samsung entities by (and paid by the Samsung entities to) third parties that had provided services to the Samsung entities separate from the services provided by OOCL.

BACKGROUND

In 2020-2022, OOCL negotiated Service Contracts with Samsung that included SEA, among other Samsung entities, as affiliates entitled to ship under, benefit from, and be bound by, those Service Contracts. *See* AMCC at ¶ 16. These Service Contracts offered the Samsung entities low freight rates and bespoke terms and conditions, such as extended free time.¹

As part of the negotiations, and ultimately embodied in the Service Contracts, the Samsung entities insisted that OOCL offer through freight rates for so-called “store-door delivery,” that is, delivery in the United States to a facility designated by SEA (as consignee). And critically, the Samsung entities insisted upon and received the right to choose and control the truckers to be used

¹ The 2021 Service Contract provided the Samsung entities with 20 days of equipment and chassis free time at destination; five times the number of days (4) provided under OOCL’s tariff; the 2022 Service Contract provided 14 days of equipment and chassis free time at destination. Absent these beneficial terms enjoyed by SEA, the charges SEA would have been asked to pay would have been far greater than those presently in dispute.

in delivering the cargo from the marine terminal to the location(s) designated by the Samsung entities.² Such drayage providers are generally referred to in the industry as Customer-Nominated Truckers (“CNTs”) or “Customer Preferred Truckers”.

OOCL was willing to allow the Samsung entities to select and control the drayage truckers that would make final delivery, but only on certain conditions. First, OOCL would contract with the CNTs selected by the Samsung entities only as agent for SEA/Samsung, so that the actual parties to the drayage contract would be SEA/Samsung and the trucker, not OOCL.³ Second, OOCL would be responsible to the trucker only for payment of the basic drayage charge; any additional charges would be for the account of the Samsung entities.⁴ Third, because CNTs can run up significant liabilities and charges of various types that the ocean carrier cannot prevent or mitigate (because the consignee controls the CNT), OOCL required that the Samsung entities assume financial responsibility for all delay charges, *unless* the delay was caused by OOCL.⁵

Having received the low rates and favorable conditions they sought by misrepresenting their acceptance of the terms regarding liability for detention and demurrage, Samsung and SEA maintained the charade during the course of the Service Contracts, preventing OOCL from taking steps to undo or mitigate the harm being done to it by the Samsung entities. *See id.* at ¶¶ 54-60. As discovery will show, and as alleged in the Amended Counterclaim, OOCL consistently informed SEA about the accruing charges and urged SEA to take steps to mitigate those charges. SEA remained silent in response to these notifications and did not take any steps to reduce or eliminate this self-

² The Service Contracts provided that for store door deliveries, Samsung would name the trucker, to whom OOCL would pay a maximum lump sum amount.

³ AMCC at ¶ 47. Although Commission Rule 226 (46 C.F.R. 502.226) provides that the Presiding Officer may take official notice of the terms of the FMC-filed Service Contracts, the Amended Counterclaim itself sets forth the relevant terms of those contracts as well.

⁴ AMCC at ¶ 49.

⁵ AMCC at ¶¶ 51,52.

inflicted harm. Samsung and SEA finally came clean in October 2022, when Samsung and SEA initiated a second, separate attempt to get ocean transportation at less than the applicable rates and charges – in this case, attempting to get service at less than the applicable ancillary charges for detention and demurrage.⁶ SEA sent OOCL a letter (“Demand Letter”) dated October 7, 2022. In that letter, SEA demanded that OOCL not only refund every penny that SEA had paid to OOCL in detention but also compensate SEA for demurrage and other third party (mostly railroad) charges incurred through no fault of OOCL and, in many cases, as a result of the conduct of CNTs for which Samsung/SEA had agreed to be responsible. SEA’s October letter also demanded that OOCL cease charging detention and demurrage to SEA in the future. *See id.* ¶ 37. Thus, contrary to their prior acceptance of the condition that the Samsung entities be liable for delay fees unless the delay was the fault of OOCL, SEA and Samsung now demanded that they be immunized from both past and future late fees, even if the fees resulted from the fault of the Samsung entities or their chosen CNTs.

The Demand Letter did not identify specific shipments where delay charges resulted from action or inaction on the part of OOCL or even shipments where SEA’s CNTs were unable to make timely pickup or delivery. Instead, SEA/Samsung asserted that, just because the bills of lading called for store-door delivery, OOCL was *per se* responsible for all delay charges, no matter the cause of the delay or what entity (including SEA/Samsung or its trucker) was at fault, saying “OOCL was responsible for obtaining all necessary resources therefor under the store-door terms.” AMCC at ¶ 38. This was contrary not only to the clear language of the contracts and the Samsung entities’ prior

⁶ SEA’s Complaint also seeks recovery of charges allegedly imposed on SEA by third parties unrelated to OOCL. SEA’s claims to similar recoveries in other cases have been uniformly rejected. *Samsung Electronics America, Inc. v. SM Line Corp.*, Docket No. 23-01, 2025 WL 2231637 (I.D., May 28, 2025), ; *Samsung Electronics America, Inc. v. ZIM Integrated Shipping Services, Ltd.*, Docket No. 22-30, 2025 WL 1255544 (I.D, April 22, 2025), so its apparently bad faith attempt to pursue a similarly meritless claim against OOCL may be considered another way by which the Samsung entities are seeking to obtain ocean transportation services at less than the applicable rates and charges.

representations, but also to the Shipping Act, as other cases involving SEA have specifically held. *Samsung Electronics America, Inc. v. ZIM Integrated Shipping Services Ltd.*, Dkt. No. 22-30, 2025 WL 1255544 at *2 (I.D., April 22, 2025) (“charging demurrage for store-door/carrier haulage is not found to be an unreasonable practice”); *Samsung Electronics America, Inc. v. SM Line Corp.* Dkt. No 23-01, 2025 WL 2231637 at *42 (I.D., May 28, 2025)(“SEA's argument that an ocean common carrier is responsible for detention and demurrage on store door moves is not supported by the applicable guidance”).

OOCL responded to the Demand Letter by stating its willingness to review circumstances relating to any specific shipments as to which Samsung/SEA believed they had been unfairly charged. SEA instead doubled down on its since-rejected position that, under the terms of the bills of lading, SEA/Samsung had no responsibility for any delay charges, no matter what the governing Service Contract and OOCL tariff said to the contrary. *See* ¶ AMCC at ¶¶ 39-42. The Samsung entities thereafter continued to pursue OOCL for a refund. SEA/Samsung knew that, based on the plain terms of the Service Contracts, OOCL’s only responsibility was to pay CNTs the normal drayage freight charges, which were included in the through rates negotiated with the Samsung entities for inland delivery of containerized shipments. *See* AMCC at ¶ 51. SEA also knew that the plain terms of the Service Contracts provided for the assessment of demurrage, detention and related charges arising from the failure of SEA (or its CNTs) to take timely delivery of shipments and/or timely return OOCL’s empty containers. *See id.* at ¶¶ 44-51. And SEA knew that a substantial portion of the charges assessed against SEA by OOCL were attributable to SEA’s or SEA’s customers’ inability to take timely delivery of SEA’s cargo. *See id.* at ¶ 40.

Samsung/SEA did not stop at the Demand Letter. Instead, even though they knew their position was contrary to the Service Contracts, their own representations, and later the caselaw, they made repeated demands, including repeated threats of litigation before the FMC for reparations in

huge amounts, to bludgeon OOCL into paying for protection from unjustified lawsuits. OOCL continued to offer review of individual shipments, but SEA/Samsung refused to hold such discussions, asserting instead that OOCL would have to pay it all or most of the more than \$11,000,000 in reparations (plus prejudgment interest and attorneys' fees) that SEA alleged it was owed.

We emphasize that many of the allegations in the Counterclaim and statements above are based on information and belief. We expect those allegations to be confirmed by discovery, which has not yet begun as to the Counterclaim.⁷ And even if not, the allegations are sufficient to require that OOCL be given an opportunity to explore those issues through discovery.

PROCEDURAL HISTORY

On March 25, 2025, SEA, having failed to coerce OOCL into paying ransom, filed a complaint with the Commission, which was served on OOCL on March 28, 2024. This Complaint was partially dismissed by Order dated November 18, 2024 (administratively final, December 19, 2024) and an Amended Complaint ("AmComplaint") was served by SEA on December 2, 2024.

On December 12, 2024, OOCL filed its Verified Answer to the Amended Complaint, as well as a Counterclaim against SEA. On the same date, OOCL filed its Third-Party Complaint against Samsung. On January 6, 2025, SEA moved to dismiss OOCL's Counterclaim. The Presiding Officer granted SEA's motion to dismiss by Order of March 31, 2025, which OOCL timely appealed to the Commission.

By order dated July 30, 2025 ("Remand Order"), the Commission affirmed the dismissal of the original Counterclaim but overruled the ALJ's decision denying OOCL leave to amend, saying:

⁷ Moreover, SEA has not produced any documents in response to OOCL's initial discovery requests. At a minimum, any decision on SEA's Motion should be withheld until after SEA's document production is complete, as that production is expected to yield additional facts in support of the Counterclaim.

“OOCL should be given *at least* one chance to allege a plausible claim along these lines, under the liberal standard that applies.” *Remand Order*, Slip Op. at 20. (emphasis added). OOCL’s Amended Counterclaim, the subject of this Motion, was filed on August 13, 2025.

Both the Amended Counterclaim and the Third-Party Complaint alleged that SEA and Samsung (as well as other Samsung entities) acted collectively to obtain transportation services at rates or charges below the applicable rates/charges, in violation of 46 U.S.C. § 41102(a).

ARGUMENT

As an initial matter, the Motion could, and should, be denied on prudential grounds. Here, the matter has already traveled once to and from the Commission. Grant of the second motion would result in another appeal to the Commission and possibly the Court of Appeals. OOCL believes that it would be highly prejudicial, inappropriate, and inconsistent with due process to litigate the SEA complaint without litigating the mandatory counterclaim at the same time, so premature resolution of the motion may well cause unnecessary delay.

It is clear that a motion to dismiss may be denied to allow the development of a full record. There are sound prudential reasons why a dispositive motion on key legal issues should be denied, including ensuring fairness for respondents and ensuring a complete and fulsome trial record of all relevant issues when this proceeding moves forward to the Commission and court of appeals. See, e.g., *Agreement No. T-3880, as Amended, Pouch Terminal, Inc.*, 14 S.R.R. 1567 (1975) (vacating an ALJ ruling in favor of Commission jurisdiction when the parties had not yet had an opportunity to develop an adequate evidentiary record). The Presiding Officer in another proceeding recently explained: “Even if summary judgment is technically proper, sound judicial policy and the proper exercise of judicial discretion permit denial of such a motion for the case to be developed fully at

trial.” *OJ Commerce, LLC v. Hamburg Sud*, 2022 WL 19299188, at *120 (ALJ 2022). *Accord, Yakov Kobel v. Hapag-Lloyd A.G.*, 2011 WL 7144010, at *2 (ALJ 2011).

A. FMC Standard of Review for Motions to Dismiss

As set forth in the Remand Order, the specific standard that must be used to evaluate a motion to dismiss for failure to state a claim is facial plausibility. *Samsung Electronics America, Inc. v. Orient Overseas Container Line, Ltd. and OOCL (Europe), Ltd. v. Samsung Electronics Co., Ltd.*, (FMC July 30, 2025) Slip Op. at 7 (citing *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007), and its own decision *Maher Terminals*, 2015 WL 9426189 at *12). All facts alleged in the Amended Counterclaim must be accepted as true and all reasonable inferences drawn in the claimant’s favor. *Id.*

“A [counterclaim] survives a motion to dismiss even ‘[i]f there are two alternative explanations, one advanced by [the] defendant and the other advanced by [the] plaintiff, both of which are plausible.’” *Banneker Ventures, LLC v. Graham*, 798 F.3d 1119, 1129 (D.C. Cir. 2015) (citation omitted). At the pleading stage, the “choice between two plausible inferences that may be drawn from factual allegations is not a choice to be made by the court on a Rule 12(b)(6) motion.” *Anderson News, LLC v. Am. Media, Inc.*, 680 F.3d 162, 185 (2d Cir. 2012). Thus, it is improper to dismiss a counterclaim “that states a plausible version of the events merely because the court finds a different version more plausible.” *Id.* Such an inquiry confuses “probability and plausibility” by “weighing the competing inferences that can be drawn from the complaint.” *SD3 LLC v. Black & Decker (U.S.) Inc.*, 801 F.3d 412 at 425 (4th Cir. 2015).

Commensurate with the Commission’s standards, in order to survive a motion to dismiss, OOCL need not at the pleading stage prove that SEA violated 41102(a); it need only assert a plausible claim that SEA did so, necessarily assuming that all OOCL allegations are true and drawing all inferences in favor of OOCL. For example, in considering SEA’s knowing and willful misconduct,

the Presiding Officer must consider the extreme implausibility of Samsung, the Service Contract signatory, allowing its affiliate SEA to incur and pay approximately \$12 million in delay fees if Samsung truly believed that OOCL, not SEA, was responsible for all such charges, without reference to fault. This is especially implausible given that Samsung may have reviewed invoices sent to SEA before they were paid. AMCC at ¶¶ 34, 36.

In sum, the Amended Counterclaim clearly alleges that SEA (together with Samsung) induced OOCL to agree to the ocean transportation of cargo at rates and charges, as well as other terms and conditions, more favorable to Samsung/SEA than what OOCL would have offered then had SEA/Samsung honestly stated their position on responsibility for detention and demurrage. Among other things, OOCL might have declined the Service Contracts on the terms actually granted or at least declined to allow SEA/Samsung the right to use CNTs under SEA/Samsung's control, so that OOCL could control and supervise the trucking, in order to minimize and mitigate delays.

As set forth in more detail below, the facts alleged by the Amended Counterclaim, namely, that: (1) SEA and Samsung induced OOCL to agree to provide the transportation of cargo at rates and other terms of the Service Contracts by representing (falsely) their willingness to accept liability for delay fees not the result of fault by OOCL; (2) even though SEA and Samsung signaled their willingness to accept, and literally did accept, the conditions set forth in the Service Contracts whereby they, not OOCL, would accept the risks of additional charges accruing from delivery delays; and (3) that Samsung and SEA created a scheme whereby SEA would demand payments from OOCL (and other carriers) for delay charges that SEA had itself had caused, are more than sufficient to meet the facial plausibility standard of *Twombly* and the Commission's precedent.

B. The Amended Counterclaim Meets FMC Pleading Standards.

The Amended Counterclaim meets FMC pleading standards, both generally and with respect to claims made under 46 U.S.C. § 41102(a).

1. The Amended Counterclaim meets general pleading standards.

The purpose of a complaint is not to provide detailed statements of fact, but merely to give *notice* to the Respondent about the practices or actions as to which the complaining party objects. Thus, FMC Rule 62(a)(3) states that a complaint need only set forth “[a] clear and concise factual statement sufficient to inform each respondent with reasonable definiteness of the acts or practices alleged to be in violation of the law, and a statement showing that the complainant is entitled to relief.” 46 C.F.R. 502.62. And as Chief ALJ Wirth has explained, under both the Federal Rules of Civil Procedure and the FMC Rules, one purpose of notice pleading is “to encourage the use of discovery procedures [rather than motions regarding the complaint] to apprise the parties of the basis for the claims made in the pleadings.” *Falcone Global Solutions, LLC v. Maurice Ward Networks, Ltd.*, Dkt. No. 18-04, 2018 WL 3655808 at *2 (Order Denying Motion for More Definite Statement, July 27, 2018).⁸ Like the complaint in *Falcone*, OOCL’s Amended Counterclaim: “includes allegations regarding the parties, jurisdiction, statement of facts, violations of the Shipping Act, injury, and a prayer for relief.” *Id.* The Amended Counterclaim is therefore sufficient to state a claim.

SEA asserts (Mot. at 15-16) that the Amended Counterclaim fails to meet the Commission’s pleading standards because, SEA alleges, the Amended Counterclaim relies “upon vague conclusory statements.” But SEA fails to elaborate on or explain its argument, resting instead on its own vague and conclusory statements. As detailed below, the Amended Counterclaim alleges each of the essential elements of a claim under 46 U.S.C. § 41102(a).

⁸ See, e.g., *Hakimoglu v. Trump Taj Mahal Assoc.*, 876 F.Supp.625, 628-29 (D.N.J. Dec. 23, 1994) (“It is not necessary for the plaintiff to plead evidence, and it is not necessary to plead the facts that serve as the basis for the claim.”); *Maier Terminals, LLC v. The Port Authority of New York and New Jersey*, FMC Dkt. No. 12-02, 2015 WL 9426189 at *13 (FMC Dec. 18, 2015) (Complaints are intended only “to give the opposing party *notice of what the case is all about* and to show how, in the *plaintiff’s* mind, the dots should be connected.”)(emphasis added).

As clarified by the Commission, it has not adopted a heightened pleading standard for claims of violations of 41102(a). *Remand Order*, Slip Op. at 12-13 and n.1 (citing *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, Dkt. No. 09-01, 2011 WL 7144008, at *38 (FMC Aug. 1, 2011)). Accordingly, the Amended Counterclaim meets the applicable general standard.

2. The Amended Counterclaim meets § 41102(a) substantive standards.

The Amended Counterclaim also meets the substantive standards applicable to claims under section 41102(a).

To make out a violation of 46 U.S.C. § 41102(a), a complainant must show that: (i) a person, (ii) knowingly and willfully, (iii) by means of any unjust or unfair device or means, (iv) obtained or attempted to obtain ocean transportation rates for property at less than the rates or charges that would be otherwise apply. *Remand Order*, Slip Op. at 8. *See also, Rose International, Inc. v. Overseas Moving Network International, Ltd.*, 29 S.R.R. 119, 158 (FMC 2001). OOCL has adequately alleged each of these elements such that the motion to dismiss should be denied.

SEA/Samsung expressly agreed in writing to accept responsibility for certain charges and for the contractual performance of third parties such as its CNTs in exchange for lower rates and charges, even though they did not plan to honor that obligation. In this respect, the case here is much like *Tropical Shipping & Construction Co., Ltd. v. Valley Wide Produce, Inc.*, Dkt. No. 93-05, 1993 WL 285897 (ALJ Default Judgment, July 20, 1993), where the ALJ concluded that the shipper violated 46 U.S.C. § 41102(a)(1) by signing a credit agreement in order to obtain better terms and conditions, then dishonoring its agreement.

Chief ALJ Wirth has recently explained that an allegation that a shipper inducing an ocean carrier to enter into service contract terms with which the shipper had no intention of complying is ***adequate to withstand*** a motion to dismiss a claim of violation of 41102(a):

If a shipper enters into a service contract with an intent to not be bound by its terms, that conduct could impact the supply chain and the willingness of that or other

common carriers to enter into the market when shortages arise. Moreover, such conduct could reduce the availability of cargo space for other, competing shippers. *China United Lines, Ltd. v. Amazon.com Services LLC* 2025 WL 1675842, at *11 (June 6, 2025)(ALJ).

This is precisely what OOCL has alleged about SEA in the Amended Counterclaim. OOCL specifically alleges therein that SEA, along with the Third-Party Respondent, “knowingly and willfully” engaged in an unjust or unfair device or means to obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply. AMCC at ¶ 65. Details supporting this allegation may be found throughout the Amended Counterclaim (e.g., AMCC at ¶¶ 45-67). SEA knew or should have known that it, not OOCL, was responsible for delays involving SEA’s preferred truckers, which SEA both selected and controlled. Certainly, no more than this is required prior to discovery.

SEA is of course entitled to dispute the allegations, but for now they must be treated as true, so any SEA challenge must await discovery.

i. SEA is a “person.”

The Amended Counterclaim alleges that SEA is “person” within the meaning of 46 U.S.C. § 41102(a), AMCC at ¶ 7, and SEA does not suggest otherwise. The term “person” is statutorily defined to “include corporations, companies, associations, firms, partnerships, societies, and joint stock companies, as well as individuals.” 1 U.S.C. § 1. In other words, as the Commission has explained, the term “any person,” as used in 46 U.S.C. § 41102(a), is fully as broad as the former language referring to “*shipper*, consignor, *consignee*, forwarder, broker, or other person.” See, e.g., *U.S. Lines and Gondrand Bros.*, 7 F.M.C. 464, 471 (FMC 1962) (emphasis added); *OC International Freight, Inc.*, Dkt. No. 12-01, 2014 WL 5316336 (FMC 2014). The Amended Counterclaim alleges both that SEA “is a corporation, organized and existing under the laws of the State of New York” and that SEA

was the “consignee” on the shipments at issue (and as such also a shipper for those shipments). AMCC at ¶¶ 3, 20, 21, 53.

ii. SEA acted “knowingly and willfully”

SEA briefly argues that OOCL has not adequately pleaded knowing and willful conduct on the part of SEA. Mot. at 10-11. SEA neglects to mention paragraphs 65 and 67 of the Amended Counterclaim which explicitly allege that SEA engaged in the illegal conduct “*knowingly and willfully*.” That allegation is also supported by, for example, the plain language of the Service Contracts, the execution of which imputes knowledge of its terms, and communications that SEA sent mischaracterizing those contracts and attempting to coerce OOCL to obtain lower rates than the parties otherwise agreed to. *See, e.g.*, AMCC at ¶¶ 37-42. Of course, those allegations in OOCL’s Amended Counterclaim must be accepted as true and tested *only after* discovery.

SEA cannot avoid the knowing and willful standard by claiming ignorance. Although SEA suggests that it played no role in the negotiation of the Service Contracts and was unaware of their terms regarding responsibility for detention and demurrage,⁹ a person is deemed to have acted “knowingly and willfully” “if the person had knowledge of the facts of the violation and intentionally violated or acted with reckless disregard, plain indifference, or purposeful, obstinate behavior akin to gross negligence.” *Rose Int’l, Inc. v. Overseas Moving Network Int’l, Ltd.*, Dkt No. 96-05, 29 S.R.R. 119, 164-165, (FMC June 1, 2001);¹⁰ *OC International Freight, Inc.* Dkt. No. 12-01, 2014

⁹ Although SEA’s suggestion is irrelevant under the standard of review that accepts the truth of all allegations in the Complaint, it is also implausible that SEA paid substantial amounts in delay fees to OOCL without any idea of the terms under which such charges were invoiced by OOCL and payable by SEA.

¹⁰ In *Rose*, motions to dismiss similar claims of 10(a)(1) violations made by an amended complaint were denied by the ALJ. *Rose International, Inc. v. Overseas Moving Network International, et al.*, Dkt No. 96-05, 27 S.R.R. 958 (ALJ January 8, 1997). There, the complainant had alleged that respondents conspired to obtain less than otherwise applicable freight rates by creating a shippers’ association made up of entities who were not otherwise entitled to enter into service contracts; the complainant, the ALJ found, was “entitled to have that [claim] adjudicated.” *Id.* at 970.

WL 5316336 at *3 (FMC July 31, 2014). Failure of SEA to inform itself of the terms of service contracts entered into by its parent, in which SEA was named as an affiliate, to which it was bound, by which it benefited, and pursuant to which the cargo delivered to SEA was transported, constitutes willful disregard on the part of SEA. Hence, there are sufficient allegations that its conduct was knowing and willful as that term is used by the Shipping Act and defined by FMC precedent.

iii. The Amended Counterclaim sufficiently alleges that SEA employed unjust or unfair device or means.

Contrary to SEA's unsupported assertion (Mot. at 14), the Amended Counterclaim adequately alleges that SEA used an unjust means or device.

Despite SEA's repeated, but unsupported protests, the allegations in the Amended Counterclaim regarding an unfair device or means are not founded on the SEA Complaint and could just as easily have been brought had SEA never filed the Complaint. As the Commission expressly recognized in reversing the then-Presiding Officer's decision not to allow amendment of the original Counterclaim, OOCL also included therein allegations regarding SEA demanding refunds as part of a scheme to obtain lower rates through an unfair device or means and specifically authorized OOCL to expand on these and other incomplete allegations:

As explained above, OOCL's counterclaim did include a brief allegation that SEA's prior requests for refunds violated section 41102(a), which the ALJ did not address. In addition, OOCL's brief argues that the heart of its section 41102(a) claim relates to the making and performance of the service contracts themselves, specifically through Samsung and SEA's alleged plan to obtain lower rates by agreeing to a certain allocation of responsibility for delays, then taking a contrary position later. In the current situation, OOCL should be given at least one chance to allege a plausible claim along these lines, under the liberal standard that applies.

OOCL on remand followed the Commission's specific guidance. The Amended Counterclaim does not rely at all on the SEA Complaint. Indeed, it mentions the SEA Complaint only once, in the very limited context of stating that the Complaint was filed on a certain date. Instead, the Amended Counterclaim posits a situation, similar to the one in *China United Lines*,

where SEA and Samsung misled OOCL at the outset as to their acceptance of clear provisions in the Service Contracts, and continued to mislead OOCL throughout the terms of the Service Contracts. OOCL offered SEA/Samsung rates lower than the otherwise-applicable tariff rates based on two main conditions – that (i) Samsung and SEA guarantee a certain minimum cargo volume (including any shipped by SEA or the other named Samsung affiliates) and (ii) Samsung and SEA, agree, as made crystal clear by the Service Contracts and incorporated tariff, that SEA, not OOCL, would be legally responsible for any delay charges involving the trucker chosen and controlled by SEA.

Even without reference to the Amended Counterclaim following the Commission’s guidance, it plainly meets the requirements for pleading an unjust or unfair device or means.

It is well-established that ***all*** a complainant must plead to make a plausible allegation of an unjust or unfair device or means is “***some element*** of falsification, ***deception***, fraud, or ***concealment***.” *Unpaid Freight Charges*, 26 S.R.R. 735, 737 (FMC 1993) (emphasis added) (quoting from *Pacific Far East Lines – Alleged Rebates*, 11 F.M.C. 357, 364 (FMC 1968), *aff’d*, 410 F.2d 237 (D.C. Cir. 1969)). See, e.g., *Rana v. Franklin*, Dkt. No. 19-03, 2020 WL 2538465 at *23 (I.D., May 12, 2020), *aff’d*, 2022 WL 1744905 (FMC May 23, 2022); *Waterman Steamship Corp. v. General Foundries, Inc.*, Dkt. No. 93-15, 1994 WL 279898 at *7 (FMC 1994). The Amended Counterclaim plainly meets this standard, alleging concealment and deception in order to achieve rates, terms, and conditions that would not otherwise have been offered. See, e.g., AMCC at ¶¶ 31, 33 (“Samsung and SEA’s ***concealment***” of their position); ¶ 66 (“Samsung sought and achieved freight rates for the transportation of its cargo lower than those that would otherwise have been applicable, and achieved extended free times and other financial benefits for SEA, by reason of the unjust and unfair device or means of ***concealing*** its rejection of the clear provision of the Service Contracts”); *id.* (“Samsung and SEA continued this deception until after . . . SEA/Samsung gained the benefits of their deceit”).

To the extent that SEA argues (or the Commission in the Remand Order suggested) that a device or means must involve a misrepresentation of fact, a party's intent is clearly a matter of fact. For example, a shipper that proffers then cancels a check engages in an unfair or unjust device or means, even though its only misrepresentation is its intent to honor the check. See, e.g., *Waterman S.S. Corp.*, 1994 WL 279898 at *7; *Shipco Transport, Inc.*, 27 S.R.R. 437 at *4; *Global Transporte Oceanico S.A. v. Coler Ocean Independent Lines Co.*, Dkt. No. 99-14, 1999 WL 1000658 at *2 (I.D., October 1, 1999). Further, the prevailing complainants in those cases were not required to prove the shippers did not intend to pay the freight at the time they presented the checks; their intent to obtain lower than applicable rates by unfair means was proven by the fact that they later cancelled the checks. And in *Seafair v. Sterling Container Line*, Dkt. No. 22-34, 2024 WL 1741926, at *10 (ALJ, April 15, 2024)(admin. final),¹¹ for example, the ALJ, adopting judicial guidance, stated that “[k]nowingly making claims that one knows or should know are false supplies the required element of fraud or concealment.”¹²

Other Commission decisions further demonstrate that misrepresentation or concealment of intent is sufficiently factual to make out a claim of an unfair or unjust device or means based thereon. In *Tropical Shipping, supra*, for example, the Commission held that a shipper violated the predecessor version of 46 U.S.C. § 41102(a) when the shipper agreed to a credit agreement in order

¹¹ *Seafair* relied on *United States v. Open Bulk Carriers*, 727 F.2d 1061, 1065 (11th Cir. 1984), in which the court of appeals found that the Commission's error was that it had never alleged either concealment by the respondents or that respondents had made any claims they knew were false. *United States v. Open Bulk Carriers*, 727 F.2d 1061, 1066 (11th Cir. 1984).

¹² The Commission distinguished *Seafair* in the Remand Order, but its distinction is irrelevant to the instant Motion. The problem in *Seafair* was that Complainant failed to **prove** any deception because Respondent had from the beginning openly communicated its disagreement with the contractual provision at issue, unlike here, where SEA concealed its position and misled OOCL to obtain benefits and only revealed its true position after it had reaped all those benefits. Such allegations must be assumed true at this stage, and they clearly suffice to state a claim. Whether SEA did or did not engage in deception and concealment is a matter of fact to be determined after trial, not at the pleading stage.

to induce the ocean carrier to carry cargo on a collect (rather than prepaid) basis, then failing to pay the full amount in accordance with the credit agreement. As the Commission explained:

Tropical's claim is based on a violation of section 10(a)(1) of the Shipping Act of 1984. Tropical claims that it was induced to provide shipment on a collect basis because Valley entered into a credit agreement in addition to Valley's failure to pay the total freight due. The Commission has indicated that such conduct by shippers will support claims of violations of section 10(a)(1). See *Unpaid Freight Charges*, 26 SRR 735, 739-740 (1993). 1993 WL 285897, at *2.

OOCL's Amended Counterclaim is on all fours with *Tropical Shipping*. It alleges that the Samsung entities entered into an agreement (akin to the credit agreement in *Tropical Shipping*) to be responsible for delay charges, other than those caused by OOCL, to induce OOCL to give them favorable rates, terms and conditions (as in the favorable terms obtained by Tropical, but then refused to meet its obligation under the agreement (here, to be responsible for delay fees, there to pay for collect shipments).

A similar holding was reached in explaining its interpretive rule, since codified at 46 C.F.R. 545.2. *Unpaid Freight Charges*, 26 S.R.R. 735, 737 (FMC 1993). There, the Commission stated that it would have jurisdiction to find an unfair or unjust device or means if the facts alleged "some kind of inducement or deceit" by a shipper to obtain favorable treatment from a carrier.

And most recently, in *China United Line*, quoted above, Chief Judge Wirth explained that the Commission has repeatedly stated that an unjust or unfair device or means may be found where the shipper induced a carrier to enter into a service contract providing lower rates by concealing its intent not to be bound thereby. To like effect is *Shipco Transport, Inc. v. Saturn Air Cargo*, 27 S.R.R. 437, (2022), finding a violation of 41102(a) where a shipper induced an ocean carrier complainant to extend it credit and release cargo, and then failed to pay for the cargo.

Deception or concealment has also been found to exist when a customer demands a refund to which it is not entitled. In *Hohenberg Bros. Co. v. FMC*, 316 F.2d 381 (D.C. Cir. 1963), the D.C. Circuit upheld an FMC cease-and-desist order issued by the Commission, concluding that an entity

violated a predecessor of 41102(a) when it demanded refunds to which it was not entitled. In that case, as here, the shipper paid the charge assessed by the carrier, then demanded a partial refund. In finding an unjust device or means, the court stated:

Hohenberg demanded a rebate on the basis of a claim that it knew or should have known to be false. Such action is similar in nature to “false billing,” “false classification,” etc., and under well known principles of statutory interpretation may properly be considered to fall within the comprehensive final phrase “any other unjust or unfair device or means.” *Id.* at 385.

The Commission in the Remand Order purported to distinguish the facts proven in *Hohenberg* from the facts alleged in OOCL’s Counterclaim, saying “that case involved a shipper’s direct request to a carrier for a refund, not an FMC action filed by the shipper.” *Remand Order*, Slip Op. at 15. But as shown above, OOCL has in its Amended Counterclaim dropped any reliance on the SEA Complaint and now bases its claims precisely on the same type of direct request as occurred in *Hohenberg* – namely the Demand Letter and subsequent communications): “SEA...demanded an immediate refund of these [demurrage, detention, handling and/or storage] Fees...” AMCC at ¶ 37.

In addition to demanding that OOCL refund the charges it had invoiced SEA, SEA also demanded that OOCL reimburse SEA for all the other charges SEA alleged it paid to non-OOCL entities, amounting to over \$11,000,000. This demand for payments over and above simple refunds of demurrage or detention charges OOCL itself had invoiced, is an additional fact supporting OOCL’s assertion that SEA used an unjust or unfair means or device to attempt to obtain ocean transportation of its cargo for less than applicable charges. *See*, AMCC at ¶¶ 37-42.

SEA states OOCL has “not identif[ied] any false statement or material omission tied to the execution or performance of the service contracts that would substantiate its allegation of deception by SEA” and asserts SEA was not involved in negotiation of the Service Contracts. Mot. at 13. But that assertion is directly contradicted by the allegations of the Amended Counterclaim. As explained above, SEA and Samsung led OOCL to believe that they agreed to the provisions regarding CNTs

and their resultant responsibility for detention and demurrage charges when they used a CNT, and indeed they signed contracts containing such terms. As Chief Judge Wirth's decision in *China United Lines* reinforces, this is plainly sufficient to make out an unjust or unfair device or means. These allegations by OOCL must be taken as true for purposes of SEA's motion, and as factual matters must await resolution at least until discovery concludes.

Furthermore, there are scores of cases where the Commission has found a violation of 46 U.S.C. § 41102(a) based on deception of the ocean carrier via misdescription of cargo. We cite just a miniscule fraction of such cases in the margin.¹³

OC Freight was an enforcement proceeding in which the Commission affirmed an ALJ determination that respondents acted knowingly and willfully when they had entered into a service contract with an ocean carrier but concealed the fact that the cargo transported under its terms was for the account of an undisclosed third party. The Commission there held that entering into a service contract with an ocean carrier on such false pretenses was an "unjust or unfair device or means." *OC International Freight*, 2014 WL 5316336, at *5 (FMC). "Congress was concerned both with protection of carriers against unscrupulous shippers, [as is the case here,] and of honest shippers against unscrupulous competitors." *Hohenberg*, supra, at 384. As the Commission has repeatedly said, citing *Hohenberg*, the fraud/deception that must be alleged may be either "to the underlying common carrier or to competing shippers." *OC International Freight, Inc. v. OMJ International Freight, Inc.*, 32 S.R.R. 1992, 1996 (FMC 2013) (citing *Rose International, Inc. v. Overseas Moving Network International, Ltd.*, 29 S.R.R. 119, 173 (FMC 2013), which in turn cited *Hohenberg*) (emphasis added).

¹³ This is consistent with the Commission's Order of July 30, 2025. See, e.g., *Stallion Cargo, Inc. - Possible Violations of Sections 10(a)(1) & 10(b)(1) of the Shipping Act of 1984*, Dkt. No. 99-18, 2001 WL 35725562 (FMC 2001); *Mobil Oil Corp. v. Barber Blue Sea Line*, Dkt. No. 86-17, 1998 WL340638 at *3 (FMC 1998).

SEA asserts the Amended Counterclaim fails to adequately plead facts and instead alleges only disagreements about legal matters. Mot. at 11. This is demonstrably inaccurate. Much like the complainants in those prior cases, the Amended Counterclaim alleges that SEA and Samsung concealed their understanding and intent, and misled OOCL when they: (1) induced OOCL to agree to the terms of the Service Contract by indicating SEA/Samsung agreed with their terms and the provisions required by OOCL; (2) concealed (either at that time or later during the course of the performance of the Service Contracts) their position that it was OOCL's responsibility to ensure the timely acceptance of the cargo and thereby OOCL's responsibility for payment of all delay charges, no matter who caused the delay; and then (3) demanded OOCL refund all delay charges it had collected from SEA as well as pay SEA for other charges SEA alleged it had paid to third parties.

In any event, the Amended Complaint alleges that SEA sought to deceive not only OOCL, but also both the FMC (should it audit OOCL's compliance) and SEA's competitors, who may have been paying higher freight rates and enjoyed less free time because they honestly stated their position on detention and demurrage to OOCL, rather than hide it as SEA and the Third-Party Respondent did. *See, e.g.*, AMCC at ¶ 66.

iv. The Amended Counterclaim sufficiently alleges SEA obtained or attempted to obtain ocean transportation rates for property at less than the rates or charges than otherwise applicable.

The Amended Counterclaim alleges the manner by which SEA and its affiliates obtained rates and/or charges lower than those otherwise applicable. The Amended Counterclaim asserts that SEA, with the other Samsung entities, engaged in an extended campaign of mischaracterizing and concealing relevant facts to achieve ocean freight rates that they would not have obtained from OOCL had they been forthright and forthcoming. AMCC at ¶¶ 66, 67.

SEA asserts the Amended Counterclaim should be dismissed because it does not allege SEA obtained or attempted to obtain ocean transportation (Mot. at 17), as SEA acted only as a consignee of Samsung's shipments. *Id.* This is, of course, a frivolous assertion but we address it nevertheless.

First, SEA asserts that because SEA was the consignee, it was neither an "owner" or a "shipper" of the cargo and thus could not have obtained "ocean transportation." *Id.* This argument lacks good faith, as it directly contradicts SEA's own Amended Complaint. *See, e.g.*, Am. Compl. at ¶ 15 ("...SEA relies on transportation companies like OOCL to transport its goods...") and ¶ 18 ("...SEA relied on OOCL for ...transportation of goods to the U.S. in ocean shipping containers..."). The Amended Counterclaim at ¶ 30 also refers to SEA as the owner of the cargo, and at ¶ 49 states, "...CNTs were employed by SEA as the owner of the cargo..." and that "freight charges...were included in the through freight rates which it had negotiated with Samsung for its store door delivery service..." Moreover, the Amended Counterclaim asserts Samsung's Requests for Quotations (to which OOCL responded with bids) were "for Ocean Freight." AMCC at ¶ 8.

SEA's argument that OOCL does not allege that SEA obtained or attempted to attain ocean transportation (Mot. at 17) is demonstrably false. As discussed above, OOCL alleges (and SEA admits) that SEA was the consignee (party to which delivery was to be made) for the shipments, and hence a "shipper" under the Shipping Act and FMC regulations. 46 U.S.C. § 40102(23); 46 C.F.R. § 530.3(r). SEA has already (i) stated that it had an ownership interest in the cargo, (ii) repeatedly referred to the cargo as "SEA goods," and (iii) emphasized the importance to SEA of the transportation services that it received from OOCL. *See, e.g.*, Am. Compl. at ¶ 15 ("SEA has relied on transportation companies like OOCL to carry its goods to inland destinations throughout the United States"); ¶ 16 ("A material inducement to work with an experienced transportation company such as OOCL is its offering of a full range of services, including management transportation from overseas to the final destination at SEA distribution centers and customers inland, otherwise known

as inland transportation or “store door” delivery.”); ¶ 18 (“...SEA relied on OOCL for store door transportation of goods to the U.S. in ocean shipping containers...”).

SEA relies on *Dukart* to support its proposition that OOCL’s Amended Counterclaim does not include any allegation that SEA obtained or attempted to obtain ocean transportation. Mot. at 17. In *Dukart* complainant’s export shipment was aborted before it was actually transported overseas. As such, the ALJ found that the allegations of a violation of 41102(a) must be dismissed because Respondent had not actually “shipp[ed the cargo overseas, no bill of lading was generated, and it did not obtain ocean transportation for the shipment. Complainant does not allege what rates should have been paid by Respondent for ocean transportation as opposed to what rates were paid (and could not, as the relationship ended prior to that point). Thus, the complaint does not allege sufficient factual matter to state a plausible section 41102(a) claim.” *Dukart v. Ocean Star International Inc.* 2020 WL 3994385, at *11 (ALJ July 10, 2020). Because the complainant’s cargo was never actually loaded aboard a vessel, no ocean transportation was involved in *Dukart*; here, on this other hand, there is no question that OOCL actually transported SEA’s cargo from a foreign origin on oceangoing vessels through a United States’ port -- SEA has admitted as such. Am. Compl. at ¶¶ 18, 20, 21, 28, 42, 43, 49, 62, 70.

The Amended Counterclaim is properly supported with facts showing that SEA sought to claw back lawfully assessed detention and demurrage charges that are, as a matter of law, an extension of freight: “It is well recognized that demurrage is extended freight, that is, extended ocean freight charges, and that the risk of vicissitudes which prevent the loading or discharge of cargo within the stipulated lay days or free time allowed by tariffs, should be borne by the cargo interest, shipper or consignee, as the case may be.” *Gulf Puerto Rico Lines, Inc. v. Associated Food Co., Inc.*, 366 F. Supp. 631, 636 (D. PR. 1973); *Yone Suzuki v. Central Argentine Ry.*, (“demurrage is extended freight and not damages for breach...” 27 F.2d 795, 805 (2nd Cir. 1928)). What is more, the

Commission has already rejected this argument as irrelevant. *Remand Order* at 19. The prohibitions of section 41102(a) apply both to (ocean freight) rates as well as to “charges”. *Id.* (citing *Seafair* and *Capitol Transport*). And the Amended Counterclaim clearly alleges that SEA, as an affiliate named in the Service Contracts, either obtained or attempted to obtain both ocean freight rates *and* charges at lower levels other than otherwise applicable. AMCC at ¶¶ 16-27, 66, 67.

C. SEA’s false argument about disagreement over terms and conditions of the Service Contracts.

SEA frames the Amended Counterclaim so broadly as to propose the Commission adjudicate any disagreement about the interpretation of a service contract. Mot. at 15. To the contrary, the Amended Counterclaim does not allege SEA violated the Act by merely disagreeing about the terms and conditions of the Service Contracts or seeking adjudication of the reasonableness of OOCL’s own charges; the Amended Complaint alleges that SEA, acting in concert with its corporate relatives, created a scheme whereby it would induce OOCL (and other carriers) to carry its cargo at rates and terms to which it would have not otherwise agreed, took advantage of those services, and then, after it had the benefit of those services, attempted to obtain transportation at rates lower than otherwise applicable rates by coercing OOCL not only into refunding all properly collected charges but also paying SEA for additional expenditures SEA claimed it had made.

By its own admission, SEA has never challenged a single specific charge as being unreasonable. Rather, SEA has steadfastly taken the unsuccessful position, as reflected in SEA’s Demand Letter, SEA’s Amended Complaint against OOCL, and SEA’s multiple complaints against other ocean carriers, that ocean carriers, including OOCL, are responsible for all delay charges *no matter who was at fault*, merely because the bill of lading or sea waybill reflected store-door delivery. *See, e.g.,* Am. Compl. ¶¶ 20, 27, 28, 29, 35, 37, 39, 40-42, 45, 46, 48, 49, 62. Indeed, SEA

repeatedly declined OOCL's requests that SEA identify which of the shipments and charges it contended OOCL acted unreasonably. *See* AMCC at ¶ 42.

Actions OOCL alleges SEA took or refused to take in the Amended Counterclaim, are allegations of fact. *See*, AMCC at ¶¶ 8,9,10,20,23,27,31,32,33,36,38,42.

SEA further argues “[OOCL] [a]lleging that SEA somehow secretly “rejected” negotiated terms for a service contract that it was not involved in negotiating is patently absurd, but in any event fails to constitute a factual allegation or any unjust or unfair device.” Mot. at 13. On the contrary, the Amended Counterclaim alleges that SEA coordinated and conspired with its parent Samsung when the contract was negotiated, *as well as* when it rejected its terms. AMCC at ¶ 8 (Samsung invited OOCL to submit proposals and transmitted documents); ¶ 9 (Samsung requested bids); ¶ 10 (Samsung required bidders to propose rates and charges using drayage truckers selected by SEA); ¶ 20 (Samsung instructed OOCL to issue contracts of carriage (bills of lading and sea waybills) showing SEA as consignee); ¶ 23 (OOCL received instructions on the issuance of invoices and collection of charges); ¶¶ 27, 32, 33 (SEA and Samsung induced OOCL to agree to terms and conditions to which OOCL would not have otherwise agreed); ¶ 31 (Samsung and SEA concealed their position that they were not responsible for delay fees not the fault of OOCL); ¶ 36 (SEA never challenged the accuracy of any charges, either before or after those invoices were sent to Samsung); ¶ 38 (SEA demanded payment from OOCL in the amount exceeding \$11,000,000); ¶ 42 (SEA refused to specify which invoices or charges related to its demand for payment from OOCL).

SEA's assertions that its decision (a fact, certainly) to “pursue statutory remedies under the Shipping Act does not transform a difference of position with respect to contractual terms into an act of concealment.” Mot. at 14. Nobody says it does, and the Commission so said in the Remand Order. Slip Op. at 17-19. As discussed above, the Amended Counterclaim makes no claim that the filing of the Amended Complaint created a violation of 46 U.S.C. 41102(a). Rather, the Amended

Counterclaim alleges that the Samsung entities misrepresented their intentions both in the negotiation and formation of the Service Contracts and that the violation arose when they dishonored those representations in the Demand Letter. As demonstrated above, such allegations are sufficient to plead a claim under 41102(a).

SEA's argument that the Amended Counterclaim is nothing more than a breach of contract claim is untenable. Mot. at 13. Nothing in the Amended Counterclaim refers to a breach of contract, and as demonstrated multiple times, the Amended Counterclaim is based on fraudulent inducement in negotiating and carrying out the Service Contracts.

D. The Amended Counterclaim need not disavow the original Counterclaim.

Finally, SEA asserts (Mot. at 14) that the Amended Counterclaim must be rejected because it includes some language similar to that of the original Counterclaim. This far-fetched assertion is nearly too absurd to require rebuttal. Nothing in the Remand Order invalidated any allegation in the original Counterclaim or suggested that OOCL start again from scratch. *See, e.g., MSRF v. HMM Co. Ltd.*, Dkt. No. 22-20, 2024 WL 5714550 at *5 (ALJ, April 15, 2024)(admin. final)(denying attorneys' fees). Instead, the Commission said only that OOCL must be given an opportunity to expand its allegations regarding violations based on actions other than filing of the SEA Complaint. This, OOCL has done.

SEA may disagree factually with some of the many new allegations, but this is neither the time nor the place for resolving such disputes. For now, OOCL's allegations must be taken as true and any factual disputes reserved for post-discovery briefing.

E. The Presiding Officer must otherwise permit amendment of the Counterclaim.

As the Commission stated in the Remand Order, OOCL is entitled under the Commission's liberal standards to "*at least one* chance" to amend its Counterclaim. *Remand Order* at 20. In the Amended Counterclaim, OOCL has substantially revised its claim against SEA along the lines

suggested by the Commission in the Remand Order, including a change of focus from the SEA Complaint to the SEA's demand for refunds, and expansion of the focus on SEA's deception throughout the course of the service contracts. Should the Presiding Officer nevertheless conclude that OOCL has not yet succeeded, he must, as the Remand Order suggests, identify any remaining insufficiencies and give OOCL a chance to correct them, unless he finds one of the very limited circumstances in which a right to amend may be ignored. *Remand Order* at 21. No such circumstance can be found here that would support an order dismissing the Counterclaim with prejudice thereby denying OOCL an opportunity to amend.

CONCLUSION

For the foregoing reasons, the Motion to Dismiss the Amended Counterclaim with prejudice should be denied. If the Presiding Officer nevertheless finds the Amended Counterclaim fails to state a claim for which the Commission may grant relief, he should not dismiss the claim but rather, as instructed by the Commission (*Remand Order*, Slip Op. at 20-21) under the liberal standard to which the Commission adheres, should provide OOCL an opportunity to make any further amendments that may be needed.

Dated: September 25, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 25th day of September, 2025, a true and correct copy of the foregoing document, **Counter-Complainant's Opposition to Counter-Respondent's Motion to Dismiss the Amended Counterclaim**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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